

Petitioner to submit a conforming order for the court's review and signature.

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IN RE THE ESTATE OF JOALLEN DULAY CASTADA, DECEASED
PR24-00522

First and Final Report of Petitioner and Waiver of Accounting and Petition for Its Settlement and For Allowance of Statutory Compensation to Attorney for Ordinary Services

PREGRANT ORDER

This matter was continued from May 14, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the Allowance or Rejection of Creditor Claim forms filed May 20, 2026 which only resolved one issue.

The court on its own motion continues this hearing to August 26, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Mortgage: The attached mortgage statements show the payments being past due in the amount of \$13,334.23 as of October 1, 2024. The Notice of Trustee Sale shows that the sale was to occur on March 23, 2026. It is unclear how much of the mortgage payments were unpaid at the time the sale occurred in March 2026. The inventory and appraisal shows that the estate had \$27,225.90 in cash assets. It is unclear how this cash was used for the benefit of the estate or why this asset was not used to pay the past due mortgage payments and sell the real property at that time. The petitioner shall explain and provide supporting documents.
2. Estate Assets on Hand: It is unclear how the petitioner arrived at the balance of \$5,833 on hand. The estate had \$27,225.90 in cash assets and no creditor claims were paid. There was no summary of account to show the estate assets at the beginning of the account and at the end of account. (See Prob. Code §10900(a) and §1060, et seq.) Even if the account is waived, the petitioner must still provide values of receipts and disbursements. The petitioner is reminded that the court may order a complete accounting at any time even if the accounting is waived. (Prob. Code §10950.)
3. Attorney Fees: The petition proposes to pay \$15,851.96 in the statutory fees, but the estate is illiquid. The petitioner shall explain how the requested attorney fees will be paid from an illiquid estate.
4. Proposed Distribution: There is no proposed distribution to show how the liabilities of the estate will be paid. This would include the creditor claims. It is also

unclear how the attorney will be paid. The petitioner shall explain and provide a proposed distribution of how the petitioner intends to distribute the balance.

5. Postage: The petitioner seeks reimbursement to her attorney for postage costs. However, postage is not reimbursable per Solano County Local Rules, Rule 7.72 absent extraordinary circumstances. What extraordinary circumstances exist such that these expenses are properly reimbursed from the estate?

LINE

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**IN RE THE ESTATE OF HEATHER LYNN PHILLIPS, DECEASED
PR25-00492**

First Amended First and Final Account and Report of Administrator and Petition for its Settlement, and Petition for Approval of:

1. Final Distribution;
2. Allowance of Compensation to Administrator Ordinary Services;
3. Allowance of Compensation to Attorneys for Ordinary Services;
4. Allowance of Reimbursement of Costs to Administrator and Anticipated Costs to Attorneys;
5. Reserve for Closing Expenses;
6. Discharge of Creditors; and
7. Exoneration and Release of Bond

PREGRANT ORDER

This matter was continued from April 20, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the amended petition and the allowance of creditor claim forms filed June 4, 2026 which resolved the outstanding issues, but created a new issue.

The court on its own motion continues this hearing to August 26, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

Amended petitions replace the original petition for all purposes. (Cal. Rules of Court, Rule § 7.3(3).) Notice of amended petitions must be given in the same manner as notice for original petitions. (Cal. Rules of Court, Rule § 7.53(a).) The filed proof of service shows that service was done on June 8, 2026 which is less than the 15 days required by the Probate Code.

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**IN THE MATTER OF THE GEORGE F. REIRCH AND ALICE L. RERICH
FAMILY TRUST, DATED SEPTEMBER 5, 2001**